

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND A
COMMISSION ON PROFESSIONAL COMPETENCE FOR
THE LOS ANGELES UNIFIED SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the DISMISSAL of:

NEWTON OKEWOYE,

A Permanent Certificated Employee,

Respondent.

OAH No. 2024060610

DECISION

This matter was heard by the Commission on Professional Competence, (Commission) on March 27, 2025 in Los Angeles, California. The Commission consisted of Rosario Dougherty, Joshua Friedrich and Glynda B. Gomez, Administrative Law Judge (ALJ) with the Office of Administrative Hearings (OAH), State of California.

Los Angeles Unified School District (District) was represented by Leslie J. Chi, Assistant General Counsel and Brian Davenport, Assistant General Counsel.

Respondent Newton Okewoye (Respondent) was present and represented by Shirley A. Lee, Attorney at Law.

Both parties presented opening argument, but no evidence was introduced by either side. The matter was submitted for decision on March 27, 2025. The Commission considered the matter in executive session. After due consideration of the entire record herein including official notice of the pleadings and notices on file with OAH, the Commission makes the following factual findings, legal conclusions, and order.

FACTUAL FINDINGS

Parties and Jurisdiction

1. Respondent was, at all times relevant herein, a permanent certificated employee of the District.

2. On April 16, 2024, District filed a Statement of Charges against Respondent, charging him with egregious misconduct (Education Code sections 44932, subdivision (a)(1) and 44939.10); unprofessional conduct (Education Code section 44932, subdivision (a)(2); immoral conduct (Education Code sections 44939); and persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education or by the governing board of the school district employing him (Education Code section 44932, subdivision (a)(8).)

3. On June 4, 2024, Respondent filed and served a Request for Hearing and Notice of Defense.

4. On July 29, 2024, District filed an Accusation against Respondent, charging him with egregious misconduct (Education Code sections 44932, subdivision (a)(1) and 44939.100); unprofessional conduct (Education Code section 44932,

subdivision (a)(2)); immoral conduct (Education Code sections 44939); and persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education or by the governing board of the school district employing him (Education Code section 44932, subdivision (a)(8).)

5. Neither party provided any evidence at the administrative hearing.

LEGAL CONCLUSIONS

Jurisdiction

1. The Commission has jurisdiction to proceed in this matter under Education Code section 44944.

Burden and Standard of Proof

2. In this case, the District has the burden of proving its allegations by a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) Preponderance of the evidence means that "the evidence on [the District's] side outweighs, preponderates over, is more than, the evidence on the other side." (*Glage v. Hawes Firearms Co.* (1990) 226 Cal.App.3d 314, 325.)

Disposition

3. District failed to establish any evidence that Respondent committed egregious misconduct within the meaning of Education Code sections 44932, subdivision (a)(1) and 44939.10.

4. District failed to establish any evidence that Respondent committed unprofessional conduct within the meaning of Education Code section 44932, subdivision (a)(2).

5. District failed to establish any evidence that Respondent engaged in immoral conduct within the meaning of Education Code sections 44939.

6. District failed to establish any evidence that Respondent engaged in persistent violation of or refused to obey the school laws of the state or reasonable regulations prescribed for the government of the public schools by the State Board of Education or by the governing board of the school district employing him within the meaning of Education Code section 44932, subdivision (a)(8).

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ORDER

The Accusation and Statement of Charges against Respondent Newton Okewoye are hereby dismissed. Respondent Newton Okewoye shall not be dismissed from employment with the Los Angeles Unified School District.

IT IS SO ORDERED.

DATE: 04/03/2025

Joshua Friedrich
Joshua Friedrich (Apr 3, 2025 14:19 PDT)

JOSHUA FRIEDRICH

Commission Member

DATE: 04/03/2025

RDougherty
RDougherty (Apr 3, 2025 17:25 PDT)

ROSARIO DOUGHERTY

Commission Member

DATE: 04/03/2025

Glynda Gomez

GLYNDA B. GOMEZ

Administrative Law Judge

Office of Administrative Hearings